

Tentative Rulings

May 7, 2026

Department S-17

Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

15. *Lewis v. Walmart, Inc.*, Case No. CIVSB2218176
Plaintiff's MTC Further Responses to Requests for Production, Set One
5/7/26, 9:00 a.m., Dept. S-17

Tentative Rulings

The Court would **DENY** the motion as moot given that Defendant has provided the at-issue verifications. The Court would also **DENY** sanctions.

Case Summary

This is a personal injury case. Plaintiff alleges that on or about August 27, 2020, she was injured at Defendant's property in Redlands. She alleges that as she was walking down the bedding aisle of the subject store, she walked past an employee who was pulling a pallet with unsecured boxes. She alleges that the pallet fell and landed on her. Thus, she asserts that Defendant's negligence and carelessness was the cause of her injuries. She filed suit on August 26, 2022, asserting causes for (1) general liability and (2) premises liability.

Relevant here, on July 6, 2026, Plaintiff served Defendant with Requests for Production, Set One (RFP1). Defendant served unverified responses and objections on September 26, 2026. Now before the Court is Plaintiff's motion to compel *verified* responses to RFP1.

Analysis

Plaintiff gave Defendant an extension to respond, "through January 9, 2026." (Lewis Decl., ¶¶2 & 4.) Plaintiff argues Defendant never served responses to this discovery and now seeks "full and complete" responses. (Lewis Decl., ¶5.)

Defendant argues that it had until September 26, 2025, to respond to Plaintiff's discovery. (Sanschagrín Decl., Ex. D.) On September 26, 2026, Defendant produced responsive documents and served objections and unverified responses to the RFP1s. (Sanschagrín Decl., Ex. E.) With the service of its opposition, Defendant provided a verification to Plaintiff's RFP1s dated October 3, 2025. By its failure to serve a timely verification, Defendant had not previously responded to Plaintiff's discovery. An unverified response to discovery is tantamount to no response at all. (*Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636.) However, by serving the verification, Plaintiff's motion to compel is now moot.

Plaintiff also asks the Court to deem Defendant's objections waived under Code of Civil Procedure, section 2031.300. However, the lack of verification did not waive the objections stated in Defendant's timely served unverified responses. (*Food 4 Less Supermarkets, Inc v. Superior Court* (1995) 40 Cal.App.4th 651, 657-658.) "The only situation in which lack of verification could both render the response untimely and result in a waiver of objections under [section 2031.300,] subdivision (k) is when the initial unverified response contains no objections." (*Ibid.*) Therefore, Defendant's objections are not waived.

Finally, Plaintiff asks the Court to award monetary sanctions. However, Plaintiff's motion does not comply with the requirements of Code of Civil Procedure at section 2023.040. (Code Civ. Proc., § 2023.040.) Plaintiff's notice of motion does not identify who she seeks sanctions from; cite the authority for the sanctions; or include a declaration "setting forth facts supporting the amount of any monetary sanction sought." (*Ibid.*) Thus, the Court would deny sanctions.

16. *WLP DEL MAR I, LLC v. Straughter, et al*, Case No. LLTVA2402206
Defendant's Motion "for Payout"
5/7/26, 9:00 a.m., Dept. S-17

In this case, a default money judgment was entered against the Defendant-Tenant (here, Straughter) on December 23, 2024. However, though no party has formally related the cases, Defendant filed a complaint against the landlord in a *separate* matter (*Straughter v. WLP Del Mar I LLC* (CIVSB2418046) – filed on June 4, 2024). That separate case moved forward in Department S26 until it was dismissed, after Straughter (plaintiff in that matter) failed to appear on four occasions. (Minute Order, Dept. S26, 4/8/26.)

While this *pro per* motion is vaguely worded, it appears that movant is asking *this* Court for a "payout" or judgment against WLP Del Mar pursuant to the allegations that she set forth in that *separate* matter (CIVSB2418046). Thus, as a preliminary matter, she has brought her motion before the *wrong court* in the *wrong case*. More importantly, however, that case was previously dismissed and would need to be revived before she could seek a judgment there.

The motion is **DENIED**.

17. *Powell, et al, v. Forest Park Mutual Water Company*, Case No. CIVSB2427211
Plaintiffs' Motion to Strike and Tax Costs
5/7/25, 9:00 a.m., Dept. S-17

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The Court would **GRANT** in part and **DENY** in part. Item 11 is taxed from \$3,381 to \$1,275. The remaining challenged relief is denied. Defendant shall recover \$2,079, jointly and severally against Plaintiffs.

Case Summary

This is an invasion of privacy and breach of contract case. Plaintiffs are shareholders of and reside within the serve area of Defendant Water Company. Plaintiffs allege that, on August 27, 2024, Defendant installed an invasive smart meter onto a water pipe connected to their home and that the device collects intimate family data. This information includes, for instance, times Plaintiffs are home; when they are away; or, when they use the restroom or shower. Plaintiffs allege the information is stored in a third-party's cloud server, opening them up to data breaches. Plaintiffs offered to pay for a compliant analogue meter in lieu of the smart device but were rebutted. They assert that Defendant's acts also violate its Bylaws and Articles of Incorporation. As such, on September 17, 2024, Plaintiffs filed suit. On October 14, 2024, they filed a First Amended Complaint (FAC) alleging causes of action for (1) invasion of privacy and (2) breach of contract.

After a Court Trial, a judgment was entered for Defendant on February 19, 2026. On March 3, 2026, Defendant filed a memorandum of costs, seeking \$4,185.00, consisting of \$675 in filing and motion fees; \$3,381.00 in court reporter fees; \$52 in electronic filing and service fees; and \$77 in messenger fees. This motion to strike and tax those costs followed.

Statement of the Law

Except as otherwise expressly provided by statute, a prevailing party can recover costs. (Code Civ. Proc., § 1032, subd. (b).) Costs statutes are to be strictly construed. (*Sequoia Vacuum Systems v. Stransky* (1964) 229 Cal.App.2d 281, 289.) Pursuant to section 1033.5(c), of the Code of Civil Procedure, an award of costs are allowable as long as they are: (1) incurred, whether or not paid; (2) reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation; and (3) reasonable in amount. Thus, even costs allowable as a matter of right may be disallowed if not reasonably necessary or may be reduced in amount to that which is reasonable. (*Perko's Enterprises, Inc. v. RRNS Enterprises* (1992) 4 Cal.App.4th 238, 245.)

Analysis

On March 3, 2026, Defendant filed a memorandum of costs seeking \$4,185.00, consisting of \$675.00 in filing and motion fees; \$3,381.00 in court reporter fees; \$52.00 in electronic filing and service fees; and \$77.00 in messenger fees.

Plaintiffs do not challenge all the costs. Rather, Plaintiffs' motion targets Item 11, the \$3,381.00 court reporter charge, and it asks that any remaining costs be assessed only against Plaintiff Jeremy Powell, rather than against both Plaintiffs. Plaintiffs argue the charge should be stricken because no court reporter was ordered by the Court; no statement of decision was requested; and Plaintiffs did not stipulate to the appointment of a private reporter pro tempore.

Defendant, for its part, submits the executed “Stipulation and Order for Appointment of Official Reporter Pro Tempore,” signed by both Jeremy Powell and Carrie Powell, counsel for Defendant, the reporter, and ordered by the Court on January 12, 2026. Defendant also submits the December 12, 2025, email exchange wherein Plaintiffs were “willing to pay half the costs” if Defendant intended to arrange a court reporter. (Pero Decl., ¶13, Exh. B.) On this record, Plaintiffs’ assertion that they never stipulated to the reporter pro tempore is not demonstrated.

Here, the record shows a specific, pre-trial cost-sharing agreement for the court reporter expense. The agreement was made before trial, and it induced one court reporter arrangement rather than duplicate reporter arrangements by the parties. Defendant later treated that agreement as controlling when its office requested Plaintiffs’ 50% share. Given that record, allowing Defendant to recover 100% of the reporter attendance fee through the cost bill would effectively nullify the parties’ specific agreement and permit Defendant to obtain more than the agreed allocation for that item.

Here, the parties agreed before trial to split the court reporter expense equally, and nothing in the agreement reserved Defendant’s right to later recover the full amount through a memorandum of costs. Accordingly, Item 11 should be taxed from \$3,381.00 to \$1,275.00. This removes the conceded nonrecoverable transcript charges and enforces the parties’ 50/50 agreement as to the \$2,550 professional attendance fee. The other unchallenged costs (\$675.00 in filing/motion fees, \$52.00 in electronic filing/service fees, and \$77.00 in messenger fees) remain.
